

CHARTER SCHOOLS

The Loudoun County School Board is authorized under state statute to establish charter schools within the School Division. The School Board may establish charter schools in Loudoun County to better meet the needs of a diverse and growing school system and thereby enhance the ability of Loudoun County Public Schools (LCPS) to achieve its educational mission of providing students with an excellent education. All charter schools shall be subject to federal and Virginia state laws, regulations, and constitutional provisions, as well as contractual agreements with the School Board.

A. Charter School Purposes. Charter schools may be established to achieve one or more of, but not limited to, the following objectives:

1. Stimulate the development of innovative programs and administrative practices within public education.
2. Provide opportunities for innovative instruction and assessment.
3. Provide parents and students with more options within their school divisions.
4. Provide teachers with a vehicle for establishing schools with alternative innovative instruction and school scheduling, management and structure.
5. Encourage the use of performance-based educational programs.
6. Establish high standards for both teachers and administrators; and
7. Develop models for replication in other public schools.

B. Nondiscrimination. No public charter school shall discriminate against any individual on the basis of disability, race, creed, color, gender identity, sex, sexual orientation, marital status, pregnancy, childbirth or related medical conditions, ethnic or national origin, religion, ancestry, age, genetic information or need for special education services or any other unlawful basis. No public charter school shall discriminate against any student on the basis of limited proficiency in English, and each public charter school shall provide students who have limited proficiency in English with appropriate services designed to teach such students English and the general curriculum, consistent with federal civil rights laws. No public charter school shall engage in any sectarian practices in its educational program, admissions or employment policies, or operations.

C. Applications. Charter school applications must be submitted to the State Board of Education. However, where the School Board intends to open a new charter school or to convert an existing school to a charter school, the application would be submitted to the School Board without State Board of Education review.

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1. Applications Initiated with the State Board of Education (State Board).

Except for applications initiated by the School Board, all applications to establish charter schools must be initially filed with and vetted by the State Board of Education, prior to being submitted to -- and considered for approval by --the Loudoun County School Board. Once approval is granted by the State Board, then formal consideration of a charter school application will be given by the School Board. It is estimated to take up to six months. State-approved applications should be submitted at least 18 months prior to the proposed opening of the charter school. The formal review process for non-school board-initiated applications involves a formal presentation of the application to the School Board by the charter applicant at a public meeting of the Board, evaluation of the application by the LCPS Administration, discussions and contract negotiations with a select committee of the School Board, and final review and consideration of the negotiated contract by the School Board.

2. Applications Initiated by the School Board. The School Board may, in its sole discretion, consider initiating a charter application in collaboration with a partner. The partner will make a presentation to the School Board at a public meeting of the Board. Once the School Board has determined it will initiate an application, the School Board's Specialized Programs and Centers Committee ("SPCC"), staff and representatives of the implementing partner will do the following:

3. Work collaboratively together to develop an effective partnership structure for the control and operation of the charter school in compliance with state laws;

4. Identify tasks remaining to be jointly addressed following the implementing partner's initial presentation to the School Board;

5. Agree on timelines for completion;

6. Determine funding sources and amounts;

7. Determine the degree of control the School Board will have on the Charter School's Board of Directors and Management Committee;

8. Assess economic feasibility of the charter school;

9. Comply with all applicable laws and regulations;

10. Negotiate a tentative proposed charter school contract, as well as a lease and any auxiliary agreements, as applicable; and

11. Present the application and tentatively proposed contract to the School Board for review and approval.

D. Application Contents. For applications filed either with the State Board or locally

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by the School Board, the application shall be a proposed agreement containing the following:

1. An executive summary.
2. A mission statement of the public charter school that is consistent with the principles of the Standards of Quality, including identification of the targeted academic program of study.
3. In instances of the conversion of an existing public school to a public charter school, a plan for the displacement of pupils, teachers, and other employees who will not attend or be employed in the public charter school.
4. The location or geographic area proposed for the public charter school.
5. The grades to be served each year for the full term of the charter contract.
6. Minimum, planned, and maximum enrollment per grade level per year for the term of the charter contract.
7. Evidence of need and community support for the proposed public charter school.
8. Background information on the proposed founding management committee members and, if identified, the proposed public charter school leadership and management team.
9. The public charter school's proposed calendar and a sample daily schedule.
10. A description of the academic program that is aligned with the Standards of Learning.
11. A description of the public charter school's instructional design, including the type of learning environment, such as classroom-based or independent study; class size and structure; curriculum overview; and teaching methods.
12. The public charter school's plans for identifying and successfully serving students with disabilities, students who are English language learners, students who lag behind academically, and gifted students, including compliance with applicable laws and regulations.
13. A description of cocurricular or extracurricular programs and how such programs will be funded and delivered.

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14. Plans and timelines for student recruitment and enrollment, including lottery procedures.
15. The public charter school's student discipline policies, including discipline policies for special education students.
16. An organization chart that clearly presents the public charter school's organizational structure, including lines of authority and reporting between the management committee; staff; any related bodies, such as advisory bodies or parent and teacher councils; and any external organizations that will play a role in managing the public charter school.
17. A clear description of the roles and responsibilities for the management committee, the public charter school's leadership and management team, and any other entities shown in the organization chart.
18. A staffing chart for the public charter school's first year and a staffing plan for the term of the charter contract.
19. Plans for recruiting and developing the public charter school's leadership and staff.
20. The public charter school's leadership and teacher employment policies.
21. Proposed governing bylaws.
22. Explanations of any partnerships or contractual relationships central to the public charter school's operations or mission.
23. The public charter school's plans for providing transportation, food service, and all other significant operational and ancillary services.
24. A statement of opportunities and expectations for parent involvement.
25. A detailed public charter school start-up plan that identifies tasks, timelines, and responsible individuals.
26. A description of the public charter school's financial plan, policies, and standard operating procedures, including financial controls and audit requirements.
27. A description of the insurance coverage that the public charter school will obtain.
28. Start-up and five-year budgets with clearly stated assumptions.

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29. Start-up and first-year cash-flow projections with clearly stated assumptions.
30. Evidence of anticipated fundraising contributions, if claimed in the application.
31. A sound facilities plan, including backup or contingency plans, if appropriate, to include responses to the information addressed in Item 36 below.
32. Assurances that the public charter school (i) is nonreligious in its programs, admission policies, employment practices, and all other operations and (ii) does not charge tuition for students deemed residents of the school division.
33. Additional Assurances: Assurances that (i) the Charter School policies and procedures will comply with the federal *Family Educational Rights and Privacy Act* (FERPA) and the records retention schedules for public schools, and that such policies and schedules will be acceptable to the School Board; (ii) the public charter school programs, services, and activities will operate in accordance with all applicable federal and state laws and regulations, including the federal *Americans with Disabilities Act* (ADA), the federal *Individuals with Disabilities Education Improvement Act* (IDEA), Section 504 of the federal *Rehabilitation Act of 1973*, and (iii) the *Virginia Freedom of Information Act*; (iv) that the applicant has knowledge of and will comply with the *Virginia Conflict of Interest Act*; and the *Virginia Public Procurement Act, if required to do so by the charter school contract with the School Board*; and (v) that transportation will be provided consistent with state law and regulation.
34. Disclosure of any ownership or financial interest in the public charter school, by the charter applicant and the governing body, administrators, and other personnel of the proposed public charter school, and a requirement that the successful applicant and the governing body, administrators, and other personnel of the public charter school shall have a continuing duty to disclose such interests during the term of any charter.
35. The charter applicant shall include in the proposed agreement the results of any State Board review of the public charter school application that may have been conducted as provided in subsection C of Va. Code § 22.1-212.9.
36. Facility.
 - a. The charter school applicant shall describe the facility(ies) to be used for the charter school or the plan for the acquisition of the facility. The description should address:
 - (i) How the facility provides suitable instructional space;

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- (ii) Provisions for library services;
 - (iii) Provisions for the safe administration and storage of student records;
 - (iv) Provisions for the safe administration and storage of student medications;
 - (v) The applicant's plan for complying with building and fire codes and the Americans with Disabilities Act (ADA);
 - (vi) Information on evacuation plans;
 - (vii) The structure of operation and maintenance services; and
 - (viii) The financial arrangements for the facility, including any lease arrangements with the School Board or other entities and whether any debt will be incurred.
- b. The charter school applicant, irrespective of whether the facility is the property of the School Board or not, shall provide:
- (i) A certificate of occupancy;
 - (ii) A health inspection certificate;
 - (iii) An annual fire certificate of inspection; and
 - (iv) PA copy of the lease or contract under which the charter school will use the facility.

E. Specialized Programs and Centers Committee. The SPCC will review the application with the applicant, gather any needed information and determine if a proposed draft Charter School Agreement should be negotiated for School Board consideration. If so, the SPCC will negotiate the terms of a proposed draft agreement and make its recommendation to the School Board.

If not, the SPCC shall make a recommendation that the application not be approved, or, that it be approved subject to conditions.

F. Public Hearing. The SPCC shall provide an opportunity for public comment at any meeting in which an application is being considered. Prior to the School Board's approval of any charter school application, the School Board shall give a minimum of 14 calendar days' notice of its intent to receive public comment on the application to assist the School Board in its decision to grant or deny the application.

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G. School Board Approval or Denial. If approved, the charter school will operate in accordance with the approved contract and relate to the broader school division through the SPCCSPCC for possible resolution or referral with recommendation to the School Board. Any amendments related to the Charter School Agreement, its lease, if any, and any Board service agreements shall first be considered by the SPCC.

If the School Board denies an application, the reasons shall be provided to the applicant in writing and posted on the School Board website. Within 60 days from School Board action, a petition for reconsideration may be filed which may include an amended application. Prior to ruling on a petition for reconsideration, the School Board shall provide at least 14 calendar days' notice that it will receive public comment on the petition for reconsideration. The School Board shall take action on the reconsideration within 60 calendar days of the filing of the petition which shall be final and not subject to appeal. The School Board shall submit documentation as to its rationale for the denial to the State Board of Education.

H. Renewal Application. A Charter School Agreement may be granted for a period of no more than 5 school years, but may be renewed upon application to the School Board for approval. The application for renewal will be filed with the School Board not less than 180 calendar days prior to the expiration of the then-current agreement. The renewal application shall contain the following:

1. A report on the progress of the public charter school in achieving the goals, objectives, program and performance standards for students, and such other conditions and terms as the school board or boards may require upon granting initial approval of the charter application.
2. A financial statement, on forms prescribed by the State Board, that disclose the costs of administration, instruction, and other spending categories for the public charter school and that has been concisely and clearly written to enable the School Board and the public to compare such costs to those of other schools or comparable organizations.
3. A statement providing responses to information required in Section D (36) above.

I. Revocation of Existing Agreement. The School Board may revoke a charter if the public charter school:

1. Violates the conditions, standards, or procedures established in the public charter school application and agreement;
2. Fails to meet or make reasonable progress toward achievement of the content standards or student performance standards identified in the charter application;

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3. Fails to meet generally accepted standards of fiscal management; or
4. Violates any provision of law from which the public charter school was not specifically exempted.

Nothing in this Policy shall be construed to restrict the authority of the School Board to decline to renew a charter agreement.

J. Facilities Operations

1. A Charter School facility or campus will not be included in the School Board's Capital Improvement Program, which includes its Capital Asset Preservation Program (CAPP), for current or future capital improvements unless the School Board deems it necessary to do so. In addition, the School Board will defer to the current charter agreements for existing charter schools.
2. The School Board accepts no liability for conditions, safety, and/or ADA compliance for the facility or campus.
3. For School Board owned properties, LCPS staff will conduct and provide a Facility Condition Assessment (FCA) annually to identify needed repairs to maintain a safe environment.
4. The Charter School is responsible for all capital repairs and improvements, whether or not identified in the FCA.
5. The Charter School is responsible for maintenance and repairs, and may establish services contracts, whether with LCPS or a third party.

K. Reporting. The School Board will report the grant or denial of public charter school applications to the State Board and shall specify the maximum number of charters that may be authorized, if any; the number of charters granted or denied; and whether a public charter school is designed to increase the educational opportunities of at-risk students.

[Former Policy 5-65]

Adopted: 8/14/12

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Legal Ref: Code of Virginia § [22.1-212.5](#), *et seq.*